

SHARED USE AND MANAGEMENT AGREEMENT

FOR

THE NEW ELEMENTARY SCHOOL
AND FIELD HOUSE AT
BLOSSOM HILLS

BETWEEN

THE BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT,

AND

THE CITY OF BRECKSVILLE

SHARED USE AND MANAGEMENT AGREEMENT

This Agreement is entered into as of the date hereof, by and between the BRECKSVILLE-BROADVIEW HEIGHTS CITY SCHOOL DISTRICT ("District") AND THE CITY OF BRECKSVILLE ("City") (the District and the City are sometimes referred to herein collectively as the "Parties") witnesseth:

WHEREAS, the District has commenced a major capital improvement program that includes the construction of a new Elementary School ("School") funded with proceeds of securities approved by the community; and

WHEREAS, the Board of Education of the District (the "Board") has determined that the District's new School should be built on the Blossom Hills site currently owned by the City; and

WHEREAS, the City is in need of a new Field House for competitive sports teams; and

WHEREAS, the District believes that its students will benefit by constructing the new School at Blossom Hills and attaching it to the City's FH; and

WHEREAS, the District and the City desire to coordinate their efforts in the construction and operation of the new School an FH in order to maximize the benefit to the community.

NOW, THEREFORE, in consideration of the covenants and conditions herein contained and for good and valuable consideration, the receipt of which is hereby acknowledged, the District and City covenant and agree as follows:

ARTICLE I

Definitions

As used in this Agreement, the following terms have the meanings set forth in this Article unless the context clearly indicates otherwise (terms defined in the singular to have the same

meaning when used in the plural and vice versa):

"Capital Improvements and Enterprises" means any property, assets or improvements certified by the Treasurer of the District to have an estimated life or period of usefulness of five years or more.

"City" means The City of Brecksville, a political subdivision of the State of Ohio and organized pursuant to the Laws of Ohio and its Charter.

"City Contribution" means the funds deposited by the City with the District for the construction of the Field House and related improvements.

"Common Areas" means the hallways, entryways and access drives appurtenant to the FH and School, to be used jointly and concurrently by the District and the City described in Exhibit D. Common Areas are areas of the FH and do not require a schedule to use.

"Enterprise Fund" means the fund created by the District for revenues and expenditures of the Parties related to the Common Areas as provided in Article V.

"Field House" means a field house facility consisting of four basketball courts and a "track" area to be constructed owned and initially furnished and equipped (as described in the plans and specifications in Exhibit B) by the City and connected to the School.

"School" means BBHCSD Elementary School.

"Operating Committee" means the committee composed of three representatives from the District and, City responsible for governance of the Enterprise Fund and operation (including scheduling of the FH) and maintenance issues of the Common Areas of the campus. The District representatives on the Operating Committee shall be authorized to spend up to \$24,999 without Board of Education approval. The Operating Committee shall adopt such rules and procedures as it deems appropriate to perform its duties under this Agreement.

"Operating Costs" means the cost of operating and maintaining the Common Areas.

"School Day" means each day students are required to attend school.

"School Hours" means 7:00 a.m. to 4:30 p.m. related to shared use space.

"School Year" means the period during which classes are in session each year as approved by the Board of Education.

"Supervision" means the obligation to have on-site an adequate number of trained individuals to properly oversee the activities occurring in the School and FH.

ARTICLE II

Planning and Construction of Facilities

2.1 School Planning and Construction. The District shall be responsible for the planning, construction, furnishing and equipping of the School and all of its costs. The District will, at its expense, cause plans and specifications for the School to be prepared by TDA. The plans and specifications shall be coordinated with the City plans for the FH so as to achieve a cohesive building. The District will locate the kitchen and dining area in close proximity to the FH.

2.1.1 Office Space in School. The District will construct an office for the sole use of the City's School Resource Officer. The District will be responsible for providing loose furniture for that Office and wiring connectivity to both the City's and District's computer systems. The District will be responsible for cleaning, repair and maintenance of that Office. The City agrees to hire, train and pay all costs associated with the School Resource Officer for a period of twenty years unless the Parties agree to no longer have a School Resource Officer. The City and District will enter into an agreement related to the duties and responsibilities of the

School Resource Officer.

2.2.2 Restrooms. The District will construct student restrooms in close proximity to the FH. Those restrooms will be cleaned and maintained by the District but will be available for use by patrons of the FH. City employees and the School Resource Officer will use designated adult restrooms during the School Day and will not use the “gang” restroom near the FH during the School Day.

2.2 FH Planning and Construction. The City and the District will enter into a Construction Agency Agreement (the “Construction Agency Agreement”) that will govern the construction of the FH using a Construction Manager at Risk to build both facilities. The Construction Agency Agreement will provide that the District will be responsible for constructing the FH as Construction Agent for the City. The District will work with the City on the planning of the FH. The City will have sole responsibility for planning, construction, furnishing and equipping of the FH and its costs. The Parties may elect to share volleyball nets and posts or other related equipment. The Parties agree to cause plans and specifications for the Field House to be prepared by TDA as hired by the District and whose services for the FH shall be reimbursed by the City. The plans and specifications will be based on the available budget for the FH, which will be mutually agreed upon by the District and City. The City and the District will work cooperatively on value engineering or reductions in design of the FH in the event the estimates exceed the budgets. The District's responsibility for construction costs associated with the FH will be capped at the proceeds of the City's Contribution.

2.2.1 Office and Storage in FH. The City will construct an office for the School’s gym teachers and storage for the School’s gym equipment and supplies in the FH at City expense.

That office will be connected electronically to the School and will not be on the City's network. The City will also construct a shared storage space for equipment and items that will be shared between the parties (e.g. volleyball stanchions and nets). The City will be responsible for cleaning, repair and maintenance of the Office and storage space. The District will be responsible for providing loose equipment and materials to operate its physical education program. The Parties may elect to share equipment or supplies on an informal basis.

2.3 Wetlands. The City will be responsible for wetlands mitigation and will pay all costs associated with wetlands on the Blossom Hills property. Those costs include the costs of consultants including the costs of the City Engineer retained to file the various applications and costs to purchase replacement wetlands or credits. The District will not be responsible for any costs associated with wetlands delineation or replacement.

2.4 Shared Expenses. Costs of:

boundary and topographical surveying,

geotechnical,

environmental (excluding wetlands) and archaeology assessments,

traffic studies and improvements,

site utilities (including electric, gas, water, sanitary, storm and telecom)

parking lots and access drives

and ball fields the use of which will be shared by the parties

any other costs related to the overall site development (excepting wetland mitigation) will be shared equally.

Construction testing will be shared pro rata based on the parties' respective construction costs.

ARTICLE III

Funding and Ownership

3.1 Funding. The Parties acknowledge that the construction, initial furnishing and initial equipping of the School is being made possible by funding from the proceeds of a publicly approved bond issue. Funding of the FH is being provided by the City.

3.2 Ownership. The District shall own the School and the approximate 25 acres transferred by the City. The City shall own the FH and Courts. Each Party shall own the tangible personal property that it contributes.

3.3 Timing of Contribution. The City shall deposit the City Contribution with the District for construction of the FH including design and its share of expenses listed above by the later of February 28, 2020 or the execution of the Guaranteed Maximum Price Amendment for its construction. The District shall deposit the City's Contribution in USAS Fund 004, FH Special Cost Center, and distinguish such proceeds and investment earnings thereon, from District funds. Disbursement of such proceeds shall be in accordance with the Construction Agency Agreement and any proceeds remaining following completion of the FH shall be remitted to the City.

ARTICLE IV

Use of the School and FH

4.1 Parking. The parking spaces shall generally be considered shared and may be used by either Party as needed. Each party shall designate 10 spaces on its property that shall be reserved for its exclusive use at all times. However, the District shall have exclusive use of the parking spaces (including the bus parking lot on) on District and City property during School Days including 45 minutes before and after School Hours. The City shall have exclusive use of

the parking spaces including the bus parking lot on School Days after 5:30 pm and on weekends during the School Year and non-exclusive use during evening school events such as open houses performances and parent teacher conferences. The District will submit to the Operating Committee a schedule of school events by March 1st of each year so that the Committee can develop a schedule of parking use.

4.2 The City shall have access to the restrooms located adjacent to the FH and the adult restroom in the School closest to the FH.

4.3 The City may use the Dining area of the School on non-school days provided it gives 30 days notice to the District and is responsible for cleaning up.

4.4 The City may arrange to use the Kitchen Facility provided it gives 30 days notice to the District and agrees to reimburse the District for the costs of a District employee to oversee the use of the kitchen equipment.

4.5 City grants to the District the right, throughout the term of this Agreement, to exclusive occupancy and use of the FH on School Days during School Hours. The City may use the FH on Elementary School Calamity Days. The City shall limit its use of the FH to office space for its recreation administrators. The City grants exclusive use at all times to the Office and storage space designated on Exhibit ____.

4.6 Scheduling of Field House. Operations Committee shall consider District requests to use the FH on non School Days. It is anticipated that the District will submit requests to use the FH by March 1st of each year.

4.7 Restrictions on Use. In further consideration of its obligations hereunder, the District and City shall use, and permit others to use, the School and FH and personal property only in a careful, safe, proper and lawful manner. The Parties shall not use, or permit others to

use, the FH for a purpose or in a manner inconsistent with this Agreement or which would adversely affect the value or character of the FH or cause the FH to lose its property tax exemption. All signage shall meet applicable zoning requirements and be approved by the Board of Education and City as part of the plans and specifications or if not in the plans and specifications by the Superintendent of Schools.

ARTICLE V

Budgeting and Funding

5.1 FH Budget. The Parties may meet with the Operating Committee to discuss the FH's Operating Costs and ways to minimize such costs.

5.2 Membership and Other Fees. The City may establish Membership Fees and other fees for use of the FH. The City shall not charge the District's for use or those gaining access through the District a fee.

5.3 Enterprise Fund. The District shall establish and maintain an Enterprise Fund. Each party will contribute \$10,000 each year to this fund. The Enterprise Fund shall be used for the maintenance, repair and replacement of the items listed below that are shared among the Parties.

Party Walls and Roofs where the District and City are on one side of the wall or Roof.

Common Area Lighting (parking lots and main entry)

Sidewalks from parking lot to the main entrance and emergency exits from the FH

Access Drives to the parking lots.

Fire Protection System

Building Security Systems- (including building access control systems),

Expenditures from the Enterprise Fund shall be made only upon the majority vote of the

Operating Committee. The District will contract for such expenditures unless the Parties agree otherwise (e.g. City may repave parking lots with its own crews). The Parties may adjust the contribution to the Enterprise Fund upon the majority vote of the Operating Committee. All payments to the Enterprise Fund shall be made by January 31; the first such payment shall be due on 1/31/22. The Operating Committee shall consist of three representatives of each Party. For the District it will be the Superintendent, an Elementary Principal and Business Manager. For the City it will be the Mayor, Recreation Director and Service Director.

In the event there is a need for a capital improvement to the areas described in this Section that exceeds the funds available in the Enterprise Fund, the District will be responsible for 50% of the cost and the City will each be responsible for 50% of the cost which shall be paid within 60 days of receiving the District's invoice. In the event a Party cannot pay its share, the District may consider financing the improvement and the City shall be responsible for its share of the improvement costs and financing costs (including underwriting fees, financial advisory services, bond counsel and all costs associated with the financing) associated with the borrowing. All revenues and expenditures of the Enterprise Fund shall be reported to the Operating Committee on an annual basis by the District's Treasurer. All interest earned on deposits in such fund shall remain in such fund.

ARTICLE VI

Supervision & Management of the SPFH

6.1 Supervision. The District shall provide Supervision of its students, its teachers and other employees and any participant in its programs and activities and its invitees and licensees carrying out obligations of the District under this Agreement. Each Party shall provide Supervision of its employees, all persons whose access to the FH is gained through such Party,

and all of its other invitees and licensees in the FH (or the applicable part thereof). Employees shall remain employees of their respective employers. Employees shall not be loaned between or among the Parties.

6.2 Management of the FH. The City shall manage the FH. In so doing, the City shall:

6.2.1. Establish rules for use of the FH (e.g. no beverages) in writing. The District will be responsible for enforcing those rules during the School Day.

6.2.2 Control and limit access to the FH.

6.2.3 Monitor activities in the FH after School Hours on School Days and on non School Days.

6.2.4. Provide Supervision of its employees, invitees, licensees and agents in the performance of the other obligations of the City under this Agreement.

In performing these management services, the City shall be an independent contractor and shall retain control over their respective employees and agents.

6.3 City Employees. The City shall staff their facilities in a manner that allows for the safe efficient and effective operation and use of the FH. All employees working during School Hours in the FH shall be subject to the same background checks as employees of the District. Such background checks shall be conducted and paid for by the entity employing the individual.

6.4. Maintenance and Custodial Services. The City shall be responsible for general custodial maintenance of the FH and all of its operating costs, general and maintenance, repairs and replacements. The District shall be responsible for general custodial maintenance of the School and all of its operating costs, general and maintenance, repairs and replacements.

6.5 Utilities and Other Operational Costs.

6.5.1 The District shall provide and pay the costs of the following for the School and the City shall provide and pay the costs of the following for the FH: Sewer and water utility service, heating, air conditioning, electricity and telephone, waste hauling and other telecommunication service. The District will be responsible for the telephone and internet service for the gym teacher's office in the FH.

6.5.2 The District will be responsible for snow plowing the parking lots and shoveling the sidewalks on School Days. The City shall be responsible for snow plowing the parking lots and shoveling sidewalks to access the FH on non School Days when it is using the FH. The City will be responsible for Snow plowing the access drives off of Oakes Road and Valley Parkway from the Road to the parking lots.

6.8 Equipment, Supplies and Materials. The City and the District shall provide all equipment, supplies and materials necessary or appropriate for carrying out their duties and responsibilities under this Agreement; provided that the each Party shall store such equipment, supplies and materials in appropriate areas and shall exercise reasonable care and comply with all applicable federal, state and local laws, regulations and requirements in their storage and use. Each Party shall be responsible for any loss or damage to its equipment stored at the FH. .

6.9 Food and Vending Machines. The District shall control the sale of food and

beverages in the School. The City shall control the sale of food and beverages in the FH provided that if the City has vending machines selling products not approved under the school lunch program, the vending machine(s) shall be inoperable during the School Day. Each party may sell food and beverages during special events in the FH or School provided it is responsible for the cleanup associated with the event. The Operating Committee may elect to solicit a common vendor to provide for food and vending at the entire Campus.

6.10 Naming Rights. The District retains all rights to sell advertising and naming of the School provided that in no event shall the District permit the selling of advertising for products that would be illegal for a Student to use or possess (e.g. tobacco or alcohol). The City retains the right to sell naming rights and advertising in the FH provided it shall not sell advertising for products it would be illegal for a Student to use or possess (e.g. tobacco or beer).

ARTICLE VII

Term and Termination

7.1 Term of Agreement. The initial term of this Agreement is for fifty (50) years (plus the duration of any partial Contract Year, as provided herein) and shall commence on the occupancy date established by the Fire Marshall. If the term does not commence on the first day of a Contract Year, then the term shall include the partial Contract Year at the beginning of the term, and the first full year of the term shall be the first full Contract Year. The Agreement shall automatically be renewed for an indefinite number of additional five-year terms commencing July 1, and ending June 30 of the five year period, unless, at least 24 months prior to the end of the initial or a subsequent five year term, the District, or the City provides written notice to the others of its intent to terminate, in which event this Agreement shall terminate at the expiration

of that five year period. Renewal terms shall be on all of the same terms and conditions as are set forth in this Agreement and any subsequent amendments to this Agreement, except that the renewal shall not revive non-recurring obligations under this Agreement that have been previously fulfilled by the Parties.

7.2 Termination of Agreement Prior to Expiration of Term. This Agreement may only be terminated prior to the expiration of a term by mutual agreement of the City and the District. The remedies contained herein are not intended to preclude any Party from pursuing other remedies available under applicable law.

ARTICLE IX

Alterations and Improvements

9.1 Alterations and Improvements. The District and City may at its own expense, make alterations and provide Capital Improvements to their School or FH provide those Capital Improvements do not materially impact the operations of the other Party. The District and City will collaborate through the Operating Committee on any potential exterior Capital Improvements to the School or FH.

ARTICLE X

Insurance

10.1 District Insurance Coverages. The District shall at all times during the term of this Agreement maintain the following policies of insurance: (a) a policy of special form (or "all risk") property insurance covering the School, against all reasonable perils, with coverage at full enterprise value and (b) a policy of commercial general liability insurance covering all portions of the School and FH that will be occupied and used by the District pursuant to this Agreement and

covering the operations of the District within such premises and naming the City as an additional insured, with coverage of at least Five Million Dollars (\$5,000,000.00) per occurrence, increased from time to time to conform to prudent standards of liability coverage. Such limit may be achieved through umbrella coverage. The District's liability policy shall provide for at least 30 days' notice to the City prior to any cancellation or expiration..

10.2 City Insurance Coverages. The City shall at all times during the term of this Agreement maintain the following policies of insurance: (a) a policy of special form property insurance covering the FH, against all reasonable perils, with coverage at full enterprise value; and (b) a policy of commercial general liability insurance covering all portions of the FH that will be occupied and used by the City pursuant to this Agreement and covering the operations of the City within such premises and naming the District as an additional insured, with coverage of at least Five Million Dollars (\$5,000,000.00) per occurrence, increased from time to time to conform to prudent standards of liability coverage. Such limit may be achieved through umbrella coverage. The City's liability policy shall provide for at least 30 days' notice to the District prior to any cancellation or expiration.

10.3 Other Insurance Requirements. The District and the City each shall be responsible for obtaining property insurance covering all of its own trade fixtures, improvements and betterments, signs, equipment, furnishings, merchandise, and other contents and personal property located in or on the premises occupied and used by such party pursuant to this Agreement, with coverage at full enterprise value. The District and the City also shall be responsible for obtaining such other policies of insurance as may be required by law in

connection with their respective construction obligations for the School and FH in connection with their respective occupancy and use of any such premises.

Upon request, the District and the City shall provide evidence to the requesting party that it has obtained the policies of insurance required under this Agreement and is otherwise in compliance with the terms of this Article.

10.4 Release and Waiver of Subrogation. Notwithstanding any provision of this Agreement to the contrary, each Party to this Agreement hereby releases each of the other Parties from any claim for recovery for any loss or damage to any of its property or for any liability which is insured under valid and collectible insurance policies (or any risk of loss or damage required pursuant to this Agreement to be insured against) to the extent of any recovery collected under such insurance (or to the extent of such amount as would have been recovered had the releasing Party carried the insurance required to be maintained by such Party hereunder).

10.5 Casualty and Restoration. Notwithstanding anything to the contrary contained in this Agreement (including but not limited to the specific maintenance and repair obligations of the Parties), if any part or all of the FH or the School is damaged by fire or other casualty, then the Party suffering the loss shall restore and repair the same to the condition thereof prior to the occurrence of the casualty.

ARTICLE XI

Obligations, Representations and Warranties

11.1 No Joint Obligation. The obligations of the District and the City under this agreement are several obligations, and are not joint obligations.

11.2 Mutual Assistance. The Parties shall reasonably cooperate with each other and shall, at their own cost and expense, provide reasonable assistance to each other to aid the other

Parties in fulfilling their obligations under this Agreement.

11.3 Authority. The Parties have taken all required action as to approve and adopt this Agreement. This Agreement is a duly authorized, valid and binding Agreement of the Parties, enforceable against them in accordance with its terms. Further, the representatives signing this Agreement have the requisite authority to do so.

11.4 Annual Appropriations. The obligations of the District and City shall be subject to annual appropriation.

11.5 Absence of Conflicts. The execution and delivery of this Agreement by the Parties:

a. Does not and will not violate or conflict with any statute, regulation, judgment, order, writ, decree, or injunction applicable to them; and

b. Will not violate or conflict with any charter provision or by-law of the Parties, or any existing mortgage, indenture, contract, licensing agreement, or other agreements binding on the Parties.

11.6 Absence of Required Consents or Contractual Restrictions. No consent or approval which has not been obtained is required to be obtained in connection with the execution and delivery of this Agreement or the performance of the transactions contemplated hereby. No contract or agreement by which the Parties are bound will restrict their ability to fulfill their obligations and responsibilities under this Agreement or any related agreement or to carry out the activities contemplated herein.

11.7 Sovereign Immunity. Nothing in this Agreement shall abrogate or modify any rights or responsibilities of the Parties for purposes of Chapter 2744, Ohio Revised Code.

ARTICLE XII

Miscellaneous

12.1 Further Assurances. The Parties hereto agree at the time and from time to time, to execute any and all documents reasonably requested by another Party other to carry out the intent of this Agreement.

12.2 Captions. The captions of this Agreement are inserted for convenience of reference only and in no way define, describe or limit the scope or intent of this Agreement or any of the provisions hereof.

12.3 Binding Effect. This Agreement shall be binding upon and shall inure to the benefit of the Parties hereto and their respective legal representatives and, successors and assigns.

12.4 No Partnership. Nothing contained in this Agreement or any of the documents to be executed pursuant hereto shall be deemed to be interpreted as a partnership or any other arrangement whereby one of the Parties is authorized to act as an agent for another.

12.5 Third Party Beneficiaries. This Agreement is made and entered into for the sole protection and benefit of the Parties hereto, and no other person, persons, entity or entities shall have a right of action hereon, right to claim any right or benefit from the terms contained herein, or be deemed a third party beneficiary hereunder. The provisions hereof involving rights or obligations of the District and City shall only apply to such third parties upon full execution of its respective sublease or occupancy agreement that is made subject to the terms hereof.

12.6 Governing Law. The validity, meaning and effect of this Agreement shall be determined in accordance with the laws of the State of Ohio.

12.7 No Assignment. No Party to this Agreement may assign, transfer or otherwise convey any or all of its rights or obligations hereunder without the prior written consent of the

other Parties.

12.8 Entire Agreement; Amendment. This Agreement with the attached exhibits, appendices and schedules sets forth the entire understanding between the Parties relating to the subject matter contained herein and merges all prior discussions between them. No amendment to this Agreement shall be effective unless it is in writing and executed by the Parties hereto.

12.9 Severability. If any one or more of the provisions contained in this Agreement or in any document executed in connection herewith (other than this Agreement or such other document) shall be invalid, illegal or unenforceable in any respect under any applicable law, the validity, legality, and enforceability of the remaining provisions contained herein shall not in any way be affected or impaired; provided, however, that in such case the Parties shall use their best efforts to achieve and give effect to the purpose of the invalid provision.

12.10 Notices. All notices, certificates, requests, demands, and other communications hereunder shall be in writing and may be personally served or sent by fax or certified or registered mail. All such notices, certificates, requests, demands and other communications shall be delivered to the Party to receive same at the addresses indicated below (or at such other address(es) as a Party may specify in a written notice):

12.11 Waiver. No failure on the part of a Party to exercise, and no delay in exercising, any right, power or remedy hereunder shall operate as a waiver thereof; nor shall any single or partial exercise of any such right, power or remedy by a Party preclude any other or further exercise thereof or the exercise of any other right, power or remedy.

12.12 No Construction Against Drafter. This Agreement shall be interpreted to give it fair meaning, and any ambiguity shall not be construed for or against any Party by reason of that Party having controlled the preparation and drafting of this Agreement.

IN WITNESS WHEREOF, this Agreement is executed _____, 2019.

BOARD OF EDUCATION FOR
BRECKSVILLE-BROADVIEW HEIGHTS CITY
SCHOOL DISTRICT

By: _____

Title: Treasurer

Date: _____

CITY OF BRECKSVILLE

By: _____

Title: Mayor

Date:-----

Approved as to Form

Director of Law

SECTION 5705.41
CERTIFICATE OF AVAILABILITY OF FUNDS

The undersigned, Treasurer of the Brecksville-Broadview Heights City School District (the "School District"), located in the County of Cuyahoga, Ohio, hereby certify in connection with the Use, Management and Lease Agreement, between the School District and the City certifies that the amount required to meet the contract, obligation, or expenditure for the attached, has been lawfully appropriated for the purpose, and is in the treasury or in process of collection to the credit of the appropriate Fund, free from any outstanding obligation or encumbrance.

IN WITNESS WHEREOF, I have hereunto set my hand this ____ day of _____, 2015.

BRECKSVILLE BROADVIEW HEIGHTS
CITY SCHOOL DISTRICT, OHIO

Treasurer

SECTION 5705.41
CERTIFICATE OF AVAILABILITY OF FUNDS

The undersigned, Director of Finance of the City of Brecksville (the "City"), located in the County of Cuyahoga, Ohio, hereby certify in connection with the Use, Management and Lease Agreement, between the School District and City certifies that the amount required to meet the contract, obligation, or expenditure for the attached, has been lawfully appropriated for the purpose, and is in the treasury or in process of collection to the credit of the appropriate Fund, free from any outstanding obligation or encumbrance.

IN WITNESS WHEREOF, I have hereunto set my hand this ____ day of _____, 2019.

THE CITY OF BRECKSVILLE

Director of Finance

